

26STCV12529 26STCV12529

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV12529 Hearing Date: September 10, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 10, 2026 TRIAL DATE: Not
set

CASE: Sona Dedeyan v. Blue Hill Specialty Insurance Company

CASE NO.: 26STCV12529

CLAIMANTS'

PETITION TO COMPEL ARBITRATION

AND

APPOINT AN ARBITRATOR

MOVING PARTY: Petitioners

Sona Dedeyan, et al.

RESPONDING PARTY: No opposition

I. INTRODUCTION

Petitioners,

Sona Dedeyan, Avag Ter-Nshanyan, and Pertsh Gevorgyan, were passengers in an Uber vehicle when they were involved in a vehicle collision and suffered injuries. Petitioners submitted a written

demand for arbitration to Respondent, Blue Hill Specialty Insurance Company. Respondent has refused to arbitrate the matter.

On

June 2, 2026, Petitioners filed the operative First Amended Judicial Council Form Complaint against Defendant for motor vehicle and general negligence.

On

June 23, 2026, Petitioners filed this petition to compel arbitration and appoint an arbitrator.

The

motion is unopposed.

II. LEGAL STANDARD

Recovery by an insured on an uninsured or underinsured motorist provision (UIM/UM) of an automobile insurance policy is governed by Insurance Code section 11580.2. If the insured and insurer cannot agree as to whether the insured is entitled to benefits under the UIM/UM provision or how much the insured is entitled to, the matter must be decided by arbitration conducted by a single neutral arbitrator. (Ins. Code, § 11580.2, subd. (f).) The discovery methods provided in Title 4 of the Code of Civil Procedure (the Civil Discovery Act) are available to either party, both before and after the commencement of arbitration, and the Superior Court has jurisdiction to adjudicate discovery disputes. (Ins. Code, § 11580.2, subds. (f) & (f)(2).)

“No cause of action shall accrue to the insured under any policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident:

(A) Suit

for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction.

(B) Agreement

as to the amount due under the policy has been concluded.

(C) The insured has formally instituted arbitration proceedings by

notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department."

(Ins. Code, § 11580.2, subd. (i).)

III. DISCUSSION

The court will grant the motion. Petitioner presents evidence establishing compliance with Insurance Code section 11580.2(i). Specifically, Petitioners formally requested arbitration proceedings by notifying Respondent in writing sent by certified mail (Ins. Code, § 11580.2, subd. (i)(1)(C)). (See Dayen Decl., Ex. A.) Petitioners have satisfied the requirements of Insurance Code section 11580.2. The court will compel Respondent to arbitrate Petitioners' claims which fall under the applicable insurance policy.

Petitioners also request appointment of an arbitrator. Code of Civil Procedure section 1281.6 states, in pertinent part, "If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator." Here, Petitioner proposes three neutrals. From that list, the court will appoint Hon. Linda Marks (Ret.).

IV. CONCLUSION

The unopposed petition is GRANTED. The court orders the parties to commence arbitration within 90 days of this order. The court appoints Hon. Linda Marks (Ret.) as the arbitrator.

Petitioners are ordered to give notice.

Dated: September 10,

2026

Brock T. Hammond

Judge of the Superior Court